



Staff Disciplinary Policy

Written June 2025 – Review date June 2027

1. Purpose

Our disciplinary procedure helps ensure staff conduct and performance meet the standards expected at Emmanuel Christian School. It is designed to be:

- Fair – applied consistently to all staff
- Supportive – aiming to correct and improve, not punish unnecessarily
- Clear – with straightforward steps and timescales

2. Key Principles

- Employees have the right to be accompanied at formal disciplinary meetings by a colleague (not involved in the case).
- Disciplinary action may start at any stage depending on the seriousness of the issue.
- No employee will normally be dismissed for a first offence (unless it is gross misconduct).
- Timeframes can be adjusted if agreed by both parties.

3. Types of Concerns

- Performance – staff are not meeting expected standards due to lack of skill, knowledge, or consistency (not usually intentional).
- Misconduct – inappropriate behaviour, rule breaking, or poor conduct.
- Gross Misconduct – very serious breaches that destroy trust and may lead to immediate dismissal.

(See Appendix A for examples of misconduct and gross misconduct.)

4. Informal Stage (for minor concerns)

1. Line manager meets the staff member to discuss the issue (“nip it in the bud”).
2. Provide clear feedback, support, and any training needed.
3. Record notes of the meeting.
4. If performance/behaviour improves → no further action.
5. If it does not improve → move to the formal stage.

5. Formal Procedure

(a) Investigation

- An SLT member investigates promptly.
- Employee is told they are under investigation.
- An investigatory meeting may be held (no right to be accompanied at this stage).

(b) Disciplinary Meeting

If there is a case to answer:

- Employee receives written notice of meeting at least 2 working days before, with:
 - Allegations in writing
 - Evidence to be used (e.g., witness statements)
 - Reminder of right to be accompanied
- Meeting chaired by a senior leader not involved in the investigation.
- Employee may present their case, ask questions, and provide evidence.

(c) Possible Outcomes

1. No action – case not proven.
2. Oral Warning – for minor issues (live for 12 months).
3. Written Warning – if further issues occur or if the offence is more serious (live for 12 months).
4. Final Written Warning – for serious offences or repeated misconduct (live for 12 months).
5. Dismissal – if behaviour does not improve after a final warning or in cases of gross misconduct.

6. Appeals

- Employees can appeal against any formal disciplinary sanction.
- Appeals must be submitted in writing within 7 days of the decision, stating grounds.
- Appeals are heard by the Headteacher or, if they were involved, by the Chair (or Deputy Chair) of Governors.
- Appeal decision is final.

7. Gross Misconduct

- May result in summary dismissal (without notice) following investigation and hearing.
- Examples include theft, violence, serious safeguarding breaches, substance abuse at work, or bringing the school into disrepute. (See Appendix A.)

8. Records

- All warnings will be confirmed in writing and placed on the staff member's file.
- Warnings normally expire after 12 months.

Appendix A – Examples

Misconduct (not exhaustive):

- Poor timekeeping
- Dress code violations
- Minor health & safety breaches
- Unauthorised absence
- Use of mobile phones around pupils

Gross Misconduct (not exhaustive):

- Theft or fraud
- Violence or assault
- Breach of safeguarding policy
- Serious insubordination
- Being under the influence of drugs/alcohol at work
- Serious breach of confidentiality
- Inappropriate relationships or contact with pupils
- Criminal activity

Formally agreed through Governors compliance:	
Signed Julian Mercik – Chair of Governors	29/06/25
Signed Andy Harris – Head Teacher	29/06/25
Review Date:	29/06/27

Examples of Misconduct

1. Minor breach health & safety regulations.
2. Poor time keeping.
3. Refusal to carry out a reasonable directive. Refusal to comply with reasonable instructions given by staff with a supervisory responsibility
4. Unauthorised absence from work.
5. Bad personal hygiene.
6. Poor work performance. Failure to perform the role for which they were employed
7. Persistent casual absence.
8. Dress code violations.
9. Use of Mobile phones around pupils.

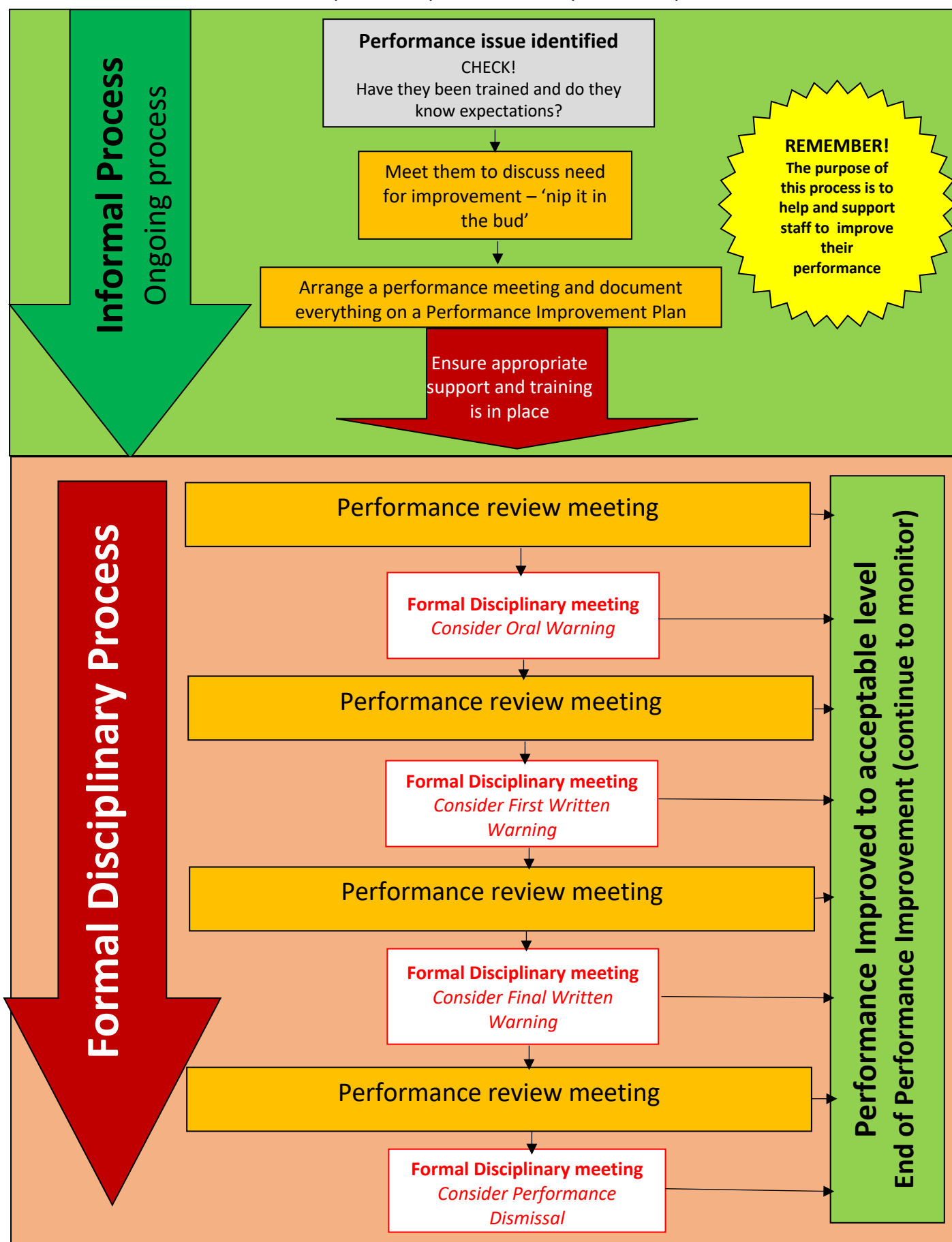
Examples of Gross Misconduct

1. Smoking or being under the influence of alcohol on school premises. Being incapable by reason of alcohol or drugs (not prescribed for a health problem) from fulfilling duties and responsibilities of employment.
2. Theft of school monies or property and of monies or property of colleagues or visitors to the school. Removal from school premises of property which is not normally taken away without the express authority of the head teacher or of the owner of the property may be regarded as gross misconduct.
3. Fraud, including submission of false reference / qualifications. Deliberate falsification of documents for the purpose of gain.
4. Arson.
5. Malicious damage to equipment or property.
6. Negligent behaviour, endangering the life of a colleague or pupils.
7. Assault. Physical violence, actual or threatened towards other staff or visitors to the school.
8. Breach of confidential information. Deliberate breaches of confidentiality particularly on sensitive matters.
9. Serious acts of insubordination.
10. Unauthorised access to files or computer records.
11. Inappropriate or compromised relationships with colleagues.
12. Inappropriate physical contact with pupils.
13. Inappropriate communication with pupils in person or online.
14. Any form of physical/verbal violence towards pupils.
15. Sexual offences, sexual insults or sexual discrimination against pupils, other staff or visitors to the school.
16. Racial offences, racial insults or racial discrimination against pupils, other staff or visitors to the school.
17. Wilful damage of school property or of property belonging to other staff or visitors to the school.
18. Any wilful act which could result in actionable negligence for compensation against the school.
19. Gross neglect of duties and responsibilities.
20. Conduct which substantially brings the name of the school into disrepute or which seriously undermines confidence in the employee.
21. Being untruthful and/or engaging in deception in matters of importance within the school community.
22. Involvement in any criminal activities.
23. Any breach of the safeguarding policy

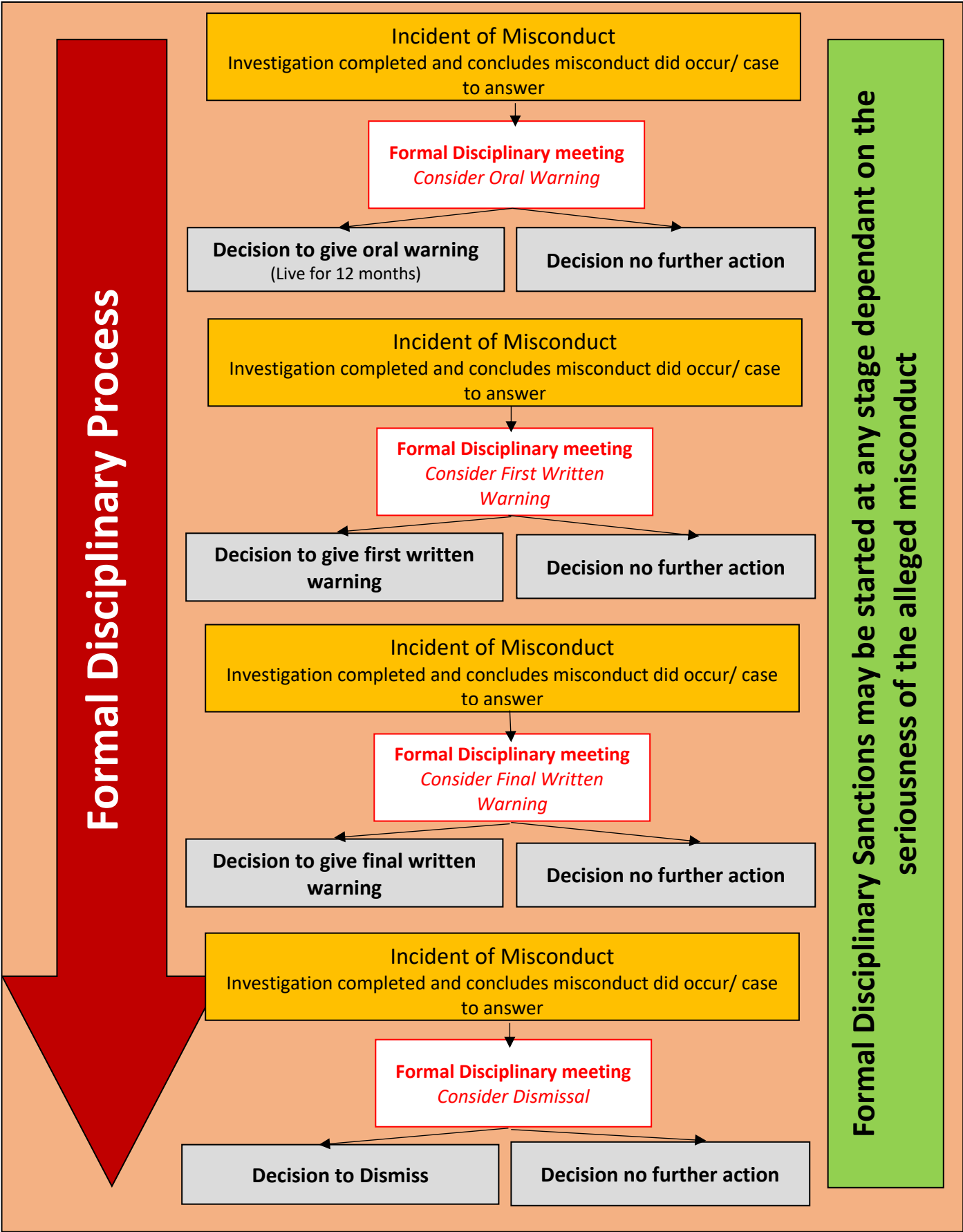
These lists are not exhaustive.

A Guide to Managing Performance

How to implement a performance improvement plan



A Guide to Managing Conduct



Performance Improvement Plan – First Meeting

Employee name:	
Employee job title:	
Line Manager:	
Performance concerns: (Define the tasks/skills where improvement is required)	
Performance concern 1 - improvement required: (Support using specific examples to identify areas of required improvement)	
Performance concern 2 - improvement required: (Support using specific examples to identify areas of required improvement)	
Performance concern 3 - improvement required: (Support using specific examples to identify areas of required improvement)	

Identify any problems and the steps needed to address these: (Include specific training/other support that will assist the employee to meet the standards i.e. coaching, mentor, buddy etc)

Employee comments on the process so far and any points noted above:

Employee signature:

Line Manager's signature:

Date:

Date for next review:

Performance Improvement Plan – Second & Subsequent Meetings	
Employee name:	
Employee job title:	
Line Manager:	
Stage of Performance Improvement Plan (i.e. meeting 2,3 etc)	
Performance concerns - If this has changed since the first meeting cover any new details: (Define the tasks/skills where improvement is required)	
Performance concern 1 - improvement required: (Support using specific examples to identify areas of improvement)	
Has improvement been achieved – Yes/No the ongoing difficulties or problems) Overall standard being achieved Yes/No (if no what are	
Performance concern 2 - improvement required: (Support using specific examples to identify areas of improvement)	
Has improvement been achieved – Yes/No the ongoing difficulties or problems) Overall standard being achieved Yes/No (if no what are	

Performance concern 3 - improvement required: (Support using specific examples to identify areas of improvement)	
Has improvement been achieved – Yes/No Overall standard being achieved Yes/No (if no what are the ongoing difficulties or problems)	
Identify steps being taken to address shortfalls i.e. include specific training/re-training and any other special support that have been put in place or completed to assist the team member to meet the standards i.e. coaching, mentor, buddy etc	
Are any changes required to the performance improvement plan? If yes, give details below:	
Employee comments on the process so far and any points noted above:	
Possible Outcome	
Has the required standard been achieved Yes/No Yes - confirm no longer on a Performance Improvement Plan No – is a referral to disciplinary hearing required? Detail agreed next stages.	
Employee signature:	
Manager's signature:	
Date:	Date for next review: